

Court No. - 3

Case :- WRIT - C No. - 18734 of 2022

Petitioner :- Raj Kumar Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Pramod Kumar Srivastava, Shiv Singh

Counsel for Respondent :- CSC, Gaurav Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Gaurav Singh, learned counsel for the respondent No.3, 4 and 5.

This writ petition has been filed praying for the following relief:

"A. Issue a writ order or direction in the nature of certiorari to quash the impugned recovery proceeding, which has been initiated by the respondent no.5 i.e. Tehsildar Tehsil- Pahari, District Chitrakoot in pursuance of recovery citation dated 22.7.2021 for the recovery of the sum of Rs.9,13,957/- (Annexure No.12 to the writ petition).

B. Issue a writ order or direction in the nature of mandamus directing the concerned respondents not to arrest and harass to the Petitioner in pursuance of recovery citation dated 22.7.2021 issued by respondent no.5 i.e. Tehsildar Tehsil- Pahari, District Chitrakoot against the Petitioner."

Sri Gaurav Singh, learned counsel for the respondent No.3, 4 and 5/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 15.7.2022

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